

	REQUEST FOR FORMAL WRITTEN QUOTATION CLOSING DATE: 14 FEBRUARY 2024 @12h00
TECHNICAL/SPECIFICATIONS RELATED ENQUIRIES	Siyanda Xhakaza-- 032 437 9419 Siyanda.Xhakaza@ilembe.gov.za
ADMINISTRATIVE ENQUIRIES	Ms. N.Gumede – 032 551 8751 nomusa.gumede@ilembe.gov.za
REFERENCE	HR/024824/2024
DATE OF ISSUE	07 FEBRUARY 2024

Kindly submit (on your company letterhead); a written price quotation for the following: -

QTY	DESCRIPTION
2	Hire of a 2 Learning Venue for IDM Employees attending Training for a period of 2 months *Each Venue (Classroom) to accommodate 50 Learners * Chairs & Tables *Must be approved by Health & safety *Suitable for E-Learning *Aircon/Fan *Screen & Projector *Flip Chart The venue will be utilized during the working hours from Monday to Friday not on a holiday and weekend. The venue must be within KwaDukuza area.

All bidders must PLEASE ensure that they have a clear knowledge of what they are quoting for

Completed quotations must be submitted in a sealed envelope clearly marked with the company name and address, the correct REFERENCE Number must be written on the outside of the envelope containing the quotation. All quotations must be deposited into the **Quotations Box** situated at the **Reception Area, iLembe District Main Building, 12 HAYSOME ROAD (TECHNICAL BUILDING) Kwa-Dukuza 4450** by no later than the closing date and time where they will be opened in public. No faxed or e-mailed quotations will be accepted.

The following conditions will apply:

- Price(s) quoted must be valid for at least thirty (30) days from date of offer.
- Price(s) quoted must be firm and inclusive of VAT, vendors not registered for VAT with SARS will be treated as Non-Vat vendors.
- Price(s) quoted must include delivery costs and a firm delivery period must be indicated
- This quotation will be evaluated in terms of the 80/20 preference point system as prescribed in the Preferential Procurement Regulations 2022, pertaining to Preferential Procurement Policy Framework Act (No 5 of 2000) and for this purpose the enclosed forms MBD 4 & MBD 6.1 (Attached on the RFQ) must be scrutinized, completed and submitted together with your quotation.

Claim of specific Goals for 20 points Allocation:

1. If the bidder is black owned entity with a minimum of 100% equity ownership, 10 points will be allocated. (If black owned is less than 100% no points will be allocated.

2. If the bidder is a blacked owned person within Ilembe District Municipality,10 points will be allocated (if not residing within no points will be allocated)

- Suppliers submitting quotation should be registered with Central Suppliers Database (CSD), CSD number must be submitted. If supplier is not registered they cannot be considered for evaluation. If supplier wants to be registered with CSD they must go to www.csd.gov.za and get themselves registered.
- The tax clearance information (including unique SARS PIN) submitted by the prospective bidders will be verified and all bidders whose tax matters are not in order upon verification will be notified and given 7 working days to resolve their matters with SARS.
- Supporting documents as stipulated in the **Municipal Specific Goals (MBD 6.1)**
- The successful bidder will be the one scoring the highest points.

NB: No quotations will be considered from persons in the service of the state¹

Failure to comply with these conditions will invalidate your offer. iLembe District Municipality does not bind itself to accept the lowest or any of the bids and reserves the right to accept the whole or part of the bid.

S.MBHELE

MUNICIPAL MANAGER

**MBD 4
DECLARATION OF INTEREST**

1. No bid will be accepted from persons in the service of the state¹.
2. Any person, having a kinship with persons in the service of the state, including a blood relationship, may make an offer or offers in terms of this invitation to bid. In view of possible allegations of favouritism, should the resulting bid, or part thereof, be awarded to persons connected with or related to persons in service of the state, it is required that the bidder or their authorised representative declare their position in relation to the evaluating/adjudicating authority.
- 3 **In order to give effect to the above, the following questionnaire must be completed and submitted with the bid.**
 - 3.1 Full Name of bidder or his or her representative:.....
 - 3.2 Identity Number:
 - 3.3 Position occupied in the Company (director, trustee, hareholder²):.....
 - 3.4 Company Registration Number:
 - 3.5Tax Reference Number:.....
 - 3.6VAT Registration Number:
 - 3.7 The names of all directors / trustees / shareholders members, their individual identity numbers and state employee numbers must be indicated in paragraph 4 below.
 - 3.8 Are you presently in the service of the state? **YES / NO**
 - 3.8.1 If yes, furnish particulars.....
.....

¹MSCM Regulations: "in the service of the state" means to be –

- (a) a member of –
 - (i) any municipal council;
 - (ii) any provincial legislature; or
 - (iii) the national Assembly or the national Council of provinces;
- (b) a member of the board of directors of any municipal entity;
- (c) an official of any municipality or municipal entity;
- (d) an employee of any national or provincial department, national or provincial public entity or constitutional institution within the meaning of the Public Finance Management Act, 1999 (Act No.1 of 1999);
- (e) a member of the accounting authority of any national or provincial public entity; or
- (f) an employee of Parliament or a provincial legislature.

² Shareholder" means a person who owns shares in the company and is actively involved in the

management of the company or business and exercises control over the company.

3.9 Have you been in the service of the state for the past twelve months?**YES / NO**

3.9.1 If yes, furnish particulars.....

.....
3.10 Do you have any relationship (family, friend, other) with persons
in the service of the state and who may be involved with
the evaluation and or adjudication of this bid?.....**YES / NO**

3.10.1 If yes, furnish particulars.
.....

[illegible]

Registered Physical Address of the Business

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Name of Local Authority & Ward Number

--

Name of District Municipality

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Company Ownership Status

% Ownership

Race

Black African	YES	NO	
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% Ownership

Black Indian & Coloured	YES	NO	
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Other (please specify)

% Ownership

Youth	YES	NO	
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% Ownership

Women	YES	NO	
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% Ownership

Disabled	YES	NO	
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Cooperative	YES	NO	
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I hereby certify that the information furnished on this declaration form is correct. I accept that the state may act against me should this declaration prove to be false.

.....
Signature

.....
Date

.....

.....

Capacity

Name of Bidder

MBD 6.1

PREFERENCE POINTS CLAIM FORM IN TERMS OF THE PREFERENTIAL PROCUREMENT REGULATIONS 2022

This preference form must form part of all tenders invited. It contains general information and serves as a claim form for preference points for specific goals.

NB: BEFORE COMPLETING THIS FORM, TENDERERS MUST STUDY THE GENERAL CONDITIONS, DEFINITIONS AND DIRECTIVES APPLICABLE IN RESPECT OF THE TENDER AND PREFERENTIAL PROCUREMENT REGULATIONS, 2022

GENERAL CONDITIONS

- 1.1 The following preference point systems are applicable to invitations to tender:
- the 80/20 system for requirements with a Rand value of up to R50 000 000 (all applicable taxes included); and
 - the 90/10 system for requirements with a Rand value above R50 000 000 (all applicable taxes included).

To be completed by the organ of state

(delete whichever is not applicable for this tender).

- a) The applicable preference point system for this tender is the 90/10 preference point system.
- b) The applicable preference point system for this tender is the 80/20 preference point system.
- c) Either the 90/10 or 80/20 preference point system will be applicable in this tender. The lowest/ highest acceptable tender will be used to determine the accurate system once tenders are received.

1.3 Points for this tender (even in the case of a tender for income-generating contracts) shall be awarded for:

- (a) Price; and
- (b) Specific Goals.

1.4 To be completed by the organ of state:

The maximum points for this tender are allocated as follows:

1.5 Failure on the part of a tenderer to submit proof or documentation required in terms of this tender to claim points for specific goals with the tender, will be interpreted to mean that preference points for specific goals are not claimed.

1.6 The organ of state reserves the right to require of a tenderer, either before a tender is adjudicated or at any time subsequently, to substantiate any claim in regard to preferences, in any manner required by the organ of state.

DEFINITIONS

- (a) **“tender”** means a written offer in the form determined by an organ of state in response to an invitation to provide goods or services through price quotations, competitive tendering process or any other method envisaged in legislation;
- (b) **“price”** means an amount of money tendered for goods or services, and includes all applicable taxes less all unconditional discounts;
- (c) **“rand value”** means the total estimated value of a contract in Rand,

calculated at the time of bid invitation, and includes all applicable taxes;

(d) **“tender for income-generating contracts”** means a written offer in the form determined by an organ of state in response to an invitation for the origination of income-generating contracts through any method envisaged in legislation that will result in a legal agreement between the organ of state and a third party that produces revenue for the organ of state, and includes, but is not limited to, leasing and disposal of assets and concession contracts, excluding direct sales and disposal of assets through public auctions; and

(e) **“the Act”** means the Preferential Procurement Policy Framework Act, 2000 (Act No. 5 of 2000).

FORMULAE FOR PROCUREMENT OF GOODS AND SERVICES

3.1. POINTS AWARDED FOR PRICE

3.1.1 THE 80/20 OR 90/10 PREFERENCE POINT SYSTEMS

A maximum of 80 or 90 points is allocated for price on the following basis:

80/20 or 90/10

$$Ps=80(1- \frac{Pt-Pmin}{Pmin}) \text{ or } Ps=90(1- \frac{Pt-Pmin}{Pmin})$$

Pmin Pmin

Where

Ps = Points scored for price of tender under consideration

Pt = Price of tender under consideration

Pmin = Price of lowest acceptable tender

3.2. FORMULAE FOR DISPOSAL OR LEASING OF STATE ASSETS AND INCOME GENERATING PROCUREMENT

3.2.1. POINTS AWARDED FOR PRICE

A maximum of 80 or 90 points is allocated for price on the following basis:

80/20 or 90/10

$$Ps=80(1+ \frac{Pt-Pmax}{Pmax}) \text{ or } Ps=90(1+ \frac{Pt-Pmax}{Pmax})$$

Pmax Pmax

Where

Ps = Points scored for price of tender under consideration

Pt = Price of tender under consideration Pmax = Price of highest

acceptable tender

POINTS AWARDED FOR SPECIFIC GOALS

4.1. In terms of Regulation 4(2); 5(2); 6(2) and 7(2) of the Preferential Procurement Regulations, preference points must be awarded for specific goals stated in the tender. For the purposes of this tender the tenderer will be allocated points based on the goals stated in table 1 below as may be supported by proof/ documentation stated in the conditions of this tender:

4.2. In cases where organs of state intend to use Regulation 3(2) of the Regulations, which states that, if it is unclear whether the 80/20 or 90/10 preference point system applies, an organ of state must, in the tender documents, stipulate in the case of—

(a) an invitation for tender for income-generating contracts, that either the 80/20 or 90/10 preference point system will apply and that the highest acceptable tender will be used to determine the applicable preference point system; or

- (b) any other invitation for tender, that either the 80/20 or 90/10 preference point system will apply and that the lowest acceptable tender will be used to determine the applicable preference point system, then the organ of state must indicate the points allocated for specific goals for both the 90/10 and 80/20 preference point system.

Table 1: Specific goals for the tender and points claimed are indicated per the table below.

(Note to organs of state: Where either the 90/10 or 80/20 preference point system is applicable, corresponding points must also be indicated as such.

Note to tenderers: The tenderer must indicate how they claim points for each preference point system below as per 80/20 preference point system.)

The specific goals allocated points in terms of this tender	Number of points allocated (80/20 system) (To be completed by the organ of state)	Number of points claimed (80/20 system) (To be completed by the tenderer)
Race HDP (Black Equity Ownership HDP)	10	
Location (Residing with Ilembe District Municipality)	10	

DECLARATION WITH REGARD TO COMPANY/FIRM

4.3. Name of company/firm.....

4.4. Company registration number:

4.5. TYPE OF COMPANY/ FIRM

- ☐ Partnership/Joint Venture / Consortium
- ☐ One-person business/sole propriety
- ☐ Close corporation
- ☐ Public Company
- ☐ Personal Liability Company
- ☐ (Pty) Limited
- ☐ Non-Profit Company
- ☐ State Owned Company

[TICK APPLICABLE BOX]

4.6. I, the undersigned, who is duly authorised to do so on behalf of the company/firm, certify that the points claimed, based on the specific goals as advised in the tender, qualifies the company/ firm for the preference(s) shown and I acknowledge that:

i) The information furnished is true and correct; ii) The preference points claimed are in accordance with the General Conditions as indicated in paragraph 1 of this form;

iii) In the event of a contract being awarded as a result of points claimed as shown in paragraphs 1.4 and 4.2, the contractor may be required to furnish documentary proof to the satisfaction of the organ of state that the claims are correct;

iv) If the specific goals have been claimed or obtained on a fraudulent basis or any of the conditions of contract have not been fulfilled, the organ of state may, in addition to any other remedy it may have –

- (a) disqualify the person from the tendering process;
- (b) recover costs, losses or damages it has incurred or suffered as a result of that person's conduct;
- (c) cancel the contract and claim any damages which it has suffered as a result

of having to make less favourable arrangements due to such cancellation;
(d) recommend that the tenderer or contractor, its shareholders and directors, or only the shareholders and directors who acted on a fraudulent basis, be restricted from obtaining business from any organ of state for a period not exceeding 10 years, after the *audi alteram partem* (hear the other side) rule has been applied; and
(e) forward the matter for criminal prosecution, if deemed necessary.

SIGNATURE(S) OF TENDERER(S)

SURNAME AND NAME:

DATE:

ADDRESS:

.....
